

Knex Service Agreement (Tri-Party Agreement)

This Service Agreement ("Agreement") is entered into by and between:

- **Knex, Inc.** ("Knex")
- **Business User** ("Company")
- **Fractional Executive** ("Contractor")

(Each a "Party" and collectively the "Parties").

Effective as of the date of acceptance by all Parties ("Effective Date").

1. Scope of Services

Contractor agrees to provide fractional executive services ("Services") to Company as described in one or more project descriptions, work orders, or statements of work which references this Agreement and which is agreed by each of Company and the Contractor (each, a "Project").

Knex facilitates introductions, platform services, and payment processing between Company and Contractor.

The Company acknowledges that Contractor may, in the rendition of the Services hereunder, engage third-party suppliers and other vendors and subcontractors ("Subcontractors") from time to time to provide certain services. Contractor shall supervise such services and endeavor to guard against any loss to the Company as the result of the failure of Subcontractors to properly execute their commitments, but Contractor shall not be responsible for their failure, acts, or omissions, except where such failure, acts or omissions are due to Contractor's gross negligence or willful misconduct.

2. Contractor Relationship

- Contractor is an **independent contractor** under this Agreement.
- Nothing in this Agreement shall be construed to create an employer-employee relationship, partnership, or joint venture between Contractor and Company or Knex. The Contractor shall not be entitled to participate in any benefit programs established by either the Company or Knex.

- Contractor shall be responsible for all taxes, insurance, and compliance with applicable laws (e.g., 1099 reporting).

3. Payments

- All payments made by Company to Contractor for Services, in the amounts set forth in the applicable Project, will be processed through Knex's platform.
- Not later than thirty (30) days after the end of each month during the term of this Agreement, Company shall pay to Knex an amount equal to ten percent (10%) of the amounts paid by Company to Contractor for Services rendered pursuant to this Agreement.
- Knex will disburse payments to Contractor, less any applicable fees, according to platform policies.

4. Intellectual Property (IP)

- **Work Product Ownership:** All deliverables, inventions, processes, works of authorship, and other outputs created by Contractor specifically for Company ("Work Product") shall be **owned exclusively by Company** upon full payment to Contractor. Contractor shall promptly take any and all actions which are (in Company's reasonable discretion), necessary or desirable to evidence, maintain, perfect, protect, enforce, or defend Company's rights to Work Product under this Section 4.
- **Exclusions:** Any intellectual property, materials, templates, frameworks, methodologies, or tools developed independently by Contractor or prior to the engagement ("Contractor Tools") shall remain the sole property of Contractor. For the purpose of clarity, Contractor is an executive providing services to Company on a part time basis pursuant to the terms of this Agreement. Any intellectual property of any type developed by Contractor for or on behalf of any third party (even if during the term of this Agreement) shall not be owned by or licensed to Company.

5. Full-Time Hire Conversion Fee

- If, during the term of this Agreement or within **12 months** after its termination, Company directly hires Contractor as a full-time employee, Company shall pay Knex, within ninety (90) days of the start of such engagement, a **conversion fee equal to 25%** of Contractor's first-year annualized salary.

- Company agrees to notify Knex immediately if it wishes to engage Contractor directly outside of Knex.

6. Non-Solicitation and Non-Circumvention

- **Non-Solicitation:** During the term of this Agreement and for **12 months thereafter**, neither Company nor Contractor shall solicit or attempt to solicit any employee, contractor, client, or partner of Knex for employment or direct engagement outside of Knex without Knex's prior written consent.
- **Non-Circumvention:** Company and Contractor agree not to circumvent Knex by engaging in business with each other outside of Knex's platform without Knex's prior written consent. Any such violation shall entitle Knex to damages and/or the full fee that would have been due.

7. Confidentiality

All proprietary information, business strategies, pricing, client data, or other confidential materials disclosed by any Party shall be kept confidential and used only as needed to perform under this Agreement. This Section 7 shall not be violated by disclosure or use of information that (a) at the time of the disclosure to the receiving Party is publicly available or thereafter becomes available through no act or omission of the receiving Party, (b) is disclosed to the receiving Party by a third party that did not acquire the information under an obligation of confidentiality known to receiving Party, (c) can be shown by credible evidence to have already been in the possession of the receiving Party at the time of the communication to the receiving Party or to have been independently developed by the receiving Party, or (d) is disclosed or used as required by court order or as otherwise required by applicable law, on the condition that notice of the requirement for such disclosure or use is given to the disclosing Party prior to making such disclosure or use and the receiving Party cooperates in resisting the requirement for such disclosure or use as the disclosing Party may reasonably request. In the event a party violates or threatens to violate the provisions of this Section 7, the disclosing Party shall be entitled to seek to obtain from a court of competent jurisdiction preliminary or permanent injunctive relief, in addition to any other remedies available at law or in equity.

8. Term and Termination

- This Agreement shall remain in effect unless terminated by any Party upon thirty (30) days prior written notice.
- Any Party may terminate this Agreement, in whole or in part, for cause, without prejudice to such Party's other equitable or legal remedies, effective upon written notice to the other Parties, if any other Party: (a) materially breaches this Agreement; (b) is dissolved

or liquidated or takes any corporate action for such purpose; (c) becomes insolvent or is generally unable to pay, or fails to pay, its debts as they become due; (d) files or has filed against it a petition for voluntary or involuntary bankruptcy or otherwise becomes subject, voluntarily or involuntarily, to any proceeding under any domestic or foreign bankruptcy or insolvency law; (e) makes or seeks to make a general assignment for the benefit of its creditors; or (f) applies for or has appointed a receiver, trustee, custodian, or similar agent appointed by order of any court of competent jurisdiction to take charge of or sell any material portion of its property or business.

- The specific **Term** (including start and end dates) and **Termination** details for each engagement shall be outlined in the applicable **Scope of Work** ("SOW").
- Obligations related to Intellectual Property, Payment, Conversion Fees, Non-Solicitation, Non-Circumvention, and Confidentiality shall survive termination of this Agreement or any individual Scope of Work.

9. Limitation of Liability

Company shall indemnify and hold Contractor harmless to the maximum extent permitted under applicable law and the Company's bylaws for acts and omissions (excluding gross negligence or willful misconduct) in the Contractor's capacity as an officer, director, or employee of the Company.

Each of Contractor and Company acknowledge and agree that Knex shall not be liable for the acts or omissions of Contractor or Company.

Each Party's liability under this Agreement shall be limited to direct damages and shall not exceed the total fees paid under this Agreement.

10. Case Studies and Trademarks

Contractor may, with the prior written approval of the Company, prepare, publish, and distribute, for its sales, marketing, advertising purposes and online courses, one or more case studies describing its strategy and results generated for the Company.

In support of such case study, the Company hereby grants Contractor a limited, non-exclusive, royalty-free license to use and display, after receiving Company's written approval, (i) Company's name; (ii) Company's designated trademarks and associated logos; (iii) a hyperlink to the Company's website; and (iv) the general scope of work performed for the Company in connection with Contractor's marketing and promotional efforts for its products and services, including by publicly naming Company as a customer of Contractor and in case studies.

Contractor will use the Company's trademarks and associated logos in the form stipulated by Company and will conform to and observe such standards as Company prescribes from time to time in connection with the license granted in this Section 10.

11. General Provisions

- **Entire Agreement:** This Agreement constitutes the entire agreement between the Parties.
- **Governing Law:** This Agreement shall be governed by the laws of the State of Kansas.
- **Amendments:** No amendment or modification shall be effective unless in writing and signed by all Parties.
- **Miscellaneous:** If any provision of this Agreement is declared unlawful or unenforceable by any final administrative, legislative, or judicial action, this Agreement will be deemed amended to conform to the requirements of such action and all other provisions will remain in full force and effect. Any failure or delay in requiring strict performance or enforcing a provision of this Agreement, or a previous waiver or forbearance, will in no way be construed as a waiver or continuing waiver of any provision of this Agreement. The rights and remedies of the Parties are cumulative and not exclusive or in the alternative. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes any prior or contemporaneous agreement or understanding, whether written or oral, between the Parties with respect to such subject matter.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[KNEX]

[Contractor]

By: _____

By: _____

Title: _____

Title: _____

Date: _____

Date: _____

[Company]

By: _____

Title: _____

Date: _____